

25STCV19450 25STCV19450

County: los-angeles

Division: Civil Law and Motion

Department: 507

Hearing date: 2026-07-31

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Case Number: 25STCV19450 Hearing Date: July 31, 2026 Dept: 507

Tentative Ruling

Judge Rolf M. Treu,

Department 507

HEARING DATE: July 31, 2026 TRIAL DATE: NOT SET

CASE: Tony M. Dismuke, et al. v. FCA US LLC,
et al.

CASE NO.: 25STCV19450

MOTION

TO COMPEL DEPOSITION

MOVING PARTY: Defendant FCA US LLC

RESPONDING PARTIES: Plaintiffs Tony M.
Dismuke, Konjit Austin-Dismuke

CASE HISTORY:

06/30/25: Complaint filed.

03/30/26: First Amended Complaint filed.

TENTATIVE RULING:

Defendant's motion to compel deposition is GRANTED. Plaintiffs are ordered to appear for deposition on August 19, as agreed.

Moving Parties to
give notice.

BACKGROUND

This is a lemon law action.

Defendant moves to compel
Plaintiffs' deposition.

DISCUSSION:

Motion to Compel Deposition

Legal
Standard

"If, after
service of a deposition notice, a party to the action ... without having served a
valid objection under Section 2025.410, fails to appear for examination, or to
proceed with it, or to produce for inspection any document, electronically
stored information, or tangible thing described in the deposition notice, the
party giving the notice may move for an order compelling the deponent's
attendance and testimony, and the production for inspection of any document,
electronically stored information, or tangible thing described in the
deposition notice." (CCP § 2025.450,
subd. (a).)

The
motion must be accompanied by a good faith meet and confer declaration under
section 2016.040 or, "when the deponent fails to attend the deposition and
produce the documents, electronically stored information, or things described
in the deposition notice, by a declaration stating that the petitioner has
contacted the deponent to inquire about the nonappearance." (CCP § 2025.450, subd. (b)(2).)

Here, January 14,
2026, Defendant served a Notice of Deposition of Plaintiffs, scheduled for

February 12, 2026. (Borrero Decl., ¶ 2; Exh. A.) On February 3, 2026, Defense Counsel sent an email asking to confirm that the Plaintiffs' depositions would go forward as noticed. The same day, Plaintiffs' counsel responded that the deposition would not go forward. (Borrero Decl., ¶ 3.) On February 10, 2026, Plaintiffs served their objection to the Notice on the basis of unilateral notice and unavailability. (Id., Exh. C.)

A new

Notice of Plaintiff's deposition was served on February

12, 2026. (Borrero Decl., ¶ 6; Exh. E.) on March 30, 2026, Plaintiffs served an amended objection to the noticed depositions due "scheduling conflicts." (Id., Exh. G.)

Plaintiffs

argue in opposition that the parties have chosen August 19, 2026 for the deposition, and argue the motion is moot.

Because the deposition has not occurred, the motion is not moot. As Plaintiffs were served with a deposition notice, and did not proceed with the deposition, the motion to compel is GRANTED. Plaintiffs are ordered to appear for deposition on the agreed upon date.

Sanctions

were not requested.

CONCLUSION:

Accordingly, Defendant's motion to compel deposition is GRANTED. Plaintiffs are ordered to appear for deposition on August 19, as agreed.

Moving Parties to
give notice.

IT IS SO ORDERED.

Dated: July 31, 2026 _____

Rolf

M. Treu

Judge

of the Superior Court

Any party may submit on the tentative ruling by contacting the courtroom via email at by no later than 4:00 p.m. the day before the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.